

		This case involves claims by 12 separate plaintiffs against four governmental entities based on the actions of those entities' law enforcement officers. Although plaintiffs are represented by the same counsel, each defendant is represented by a different law firm or attorney office. The court also accepts the representation the number of defendants is likely to grow once discovery commences and plaintiffs are able to identify individual law enforcement officers who were involved in the underlying events. This case involves a variety of civil rights and other related claims concerning how law enforcement treated protestors during and after a large protest on the campus of the University of California, Irvine. All defendants have pending demurrers to the original complaint that will pose a number of novel issues and result in a series of amended pleadings and additional demurrers. These issues, pleadings, and motions will benefit from management by a judge with complex case authority. This case is likely to involve a large number of witnesses—especially given the number of plaintiffs asserting individual claims—and a large volume of documents, videos, etc. Discovery in this case will significantly benefit from the supervision of a judge with complex case authority. When this case and the foregoing factors are viewed in their entirety, the court is satisfied this case warrants a complex case designation under rule 3.400. Accordingly, the motion is GRANTED. At the time of the hearing, the court will select and assign the case to a complex judge. Defendants will be ordered to give notice of this ruling.
13.	Mann vs. Nice Sheen International, Inc. 2024-01403670	Before the court are the following motions by plaintiffs and judgment creditors Jeffrey Mann and Suzette Mann (collectively, Creditors): (1) motion for attorney fees incurred to enforce judgment, and (2) motion to compel defendant and judgment debtor Nice Sheen International, Inc. (Debtor) to respond to special interrogatories, set one, and request for monetary sanctions. <u>Motion No. 1: Motion for Attorney Fees</u> On September 25, 2024, the court entered judgment in favor of Creditors and against Debtor. (ROA 28.) Creditors state they have made multiple attempts to enforce the judgment, thereby expending additional attorney fees and costs, but have not been successful as of yet. Attorney fees and costs are recoverable when enforcing a judgment under Code of Civil Procedure sections 685.040 and 1033.5,

subdivision (a)(10)(A). Attorney fees also are recoverable in this action under Civil Code section 1717.

Creditors request a total of \$56,876.80 in attorney fees and costs related to enforcing the judgment. This comes from 101.4 hours at \$520/hr. and \$4,148.80 in costs. (Rader Decl. ¶ 9, Ex. 5.) The court finds these sums reasonable. Although Creditors provide a breakdown of the costs as Exhibit 5, they do not provide a breakdown of attorney fees other than stating the total number of hours and the requested hourly rate. Nonetheless, because attorney fees are recoverable in this case as a matter of right based on the prior award and the parties' contract, a motion was not required; a memorandum of costs is sufficient, which thereby places the burden on Debtor to bring a motion to tax the costs, including attorney fees. (Code Civ. Proc., §§ 685.070.)

Based on the foregoing, the motion is **GRANTED** and the court awards Creditor additional attorney fees in the amount of \$56,876.80 as against Debtor.

**Motion No. 2: Compel Responses
to Special Interrogatories**

Creditors served special interrogatories, set one, on Debtor. (Rader Decl. ¶ 2, Ex. 1.) Debtor failed to serve any responses to the special interrogatories by the date the motion was filed. (Rader Decl. ¶¶ 3-4, Ex. 2.) The responses are late, and Debtor has waived any objections thereto. (Code Civ. Proc., § 2030.290, subd. (a).) Creditors' motion is proper to compel Debtor's initial objection-free responses to the special interrogatories. (Code Civ. Proc., § 2030.290, subd. (b).)

Creditors also request monetary sanctions against Debtor and its attorneys of record, which are permissible. (Code Civ. Proc., §§ 2023.010, 2030.290, subd. (c).) Creditors request a reasonable \$1,460 in monetary sanctions on this motion. (Rader Decl. ¶ 6.)

Based on the foregoing, the motion is **GRANTED**. Debtor is ordered to serve code-complaint responses, without objections, to the special interrogatories within 20 days of service of written notice of the ruling. The request for monetary sanctions also is **GRANTED**. Creditors are awarded \$1,460 in attorney fees as against Debtor and its counsel of record, jointly and severally, payable to Creditors' counsel within 30 days of service of notice of this ruling.

		Creditors' counsel is ordered to give notice of these rulings.
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